

		supra, 110 Cal.App.4th at pp. 1281-1282 [moving party must make “ ‘a specific showing of serious injury’ ”]; Cal. Rules of Court, rule 2.551(b)(1) [motion to seal “must be accompanied by ... a declaration containing facts sufficient to justify the sealing”]; see ROA No. 30–Tyrell Decl., in passim.) Plaintiff’s counsel merely concludes that the portions of the documents that it seeks to seal “contain references to confidential competitive financial information of JIB and [Altametrics]” without any explanation or foundation, other than the fact that the parties have agreed to keep the terms of one of the agreements confidential. (ROA No. 30–Tyrell Decl. ¶ 3.) There is no overriding interest based on a contractual agreement for confidentiality. There is no overriding interest based on a contractual agreement for confidentiality. (McNair, supra, 234 Cal.App.4th at pp. 35-36.) Plaintiff shall give notice.
5	Vanetik vs. Hall 2022-01294260	1. Demurrer to Amended Complaint 2. Case Management Conference Defendants Brian T. Hall and Michele A. Hall’s demurrer to third amended complaint is OVERRULED. Defendants shall answer the third amended complaint (TAC) within 20 days. The fourth cause of action for false light is not merely duplicative of the first cause of action for defamation. (See Jackson v. Mayweather (2017) 10 Cal.App.5th 1240, 1264 [false light]; Bui v. Ngo (2024) 101 Cal.App.5th 1061, 1072 [defamation]; see also Fellows v. National Enquirer, Inc. (1986) 42 Cal.3d 234, 239 [“Although it is not necessary that the plaintiff be defamed, publicity placing one in a highly offensive false light will in most cases be defamatory as well.”].)

	To be sure, the two claims share substantial overlap. (See TAC ¶ 68.) However, the fourth cause of action for false light is also based on defendants' conduct in (1) creating a "parody" social media account using plaintiff's name ("@ParodyYuri"), where defendants posted a photo of sexually suggestive figures where the account holder's profile photo goes ("parodying" plaintiff), depicting plaintiff in a false light; (2) creating social media accounts under multiple aliases to post comments and create fake discussions regarding plaintiff, so as to make it appear as if many people have the same/similar defamatory statements to say about him; and (3) then apparently collecting screenshots/images/photos of these social media posts and republishing them on a purported "parody" website using plaintiff's name ("https://yuri-vanetik.com"), further solidifying that image. (See TAC ¶¶ 16, 22, Ex. 6; see also id. ¶¶ 17 [name of parody website], 69-70 [false light claim based on all of the alleged conduct and statements considered together].) These facts show defendants engaged in conduct that placed plaintiff in a false light by, inter alia, manufacturing the illusion of a public consensus in and/or the prevalence of their defamatory assertions, creating a false impression of social validation or widespread public opinion based on the opinions of just two individuals. This alleges conduct sufficient to support a false light claim that is not covered by the defamation claim. As such, it cannot be said that the two causes of action are duplicative. (See <i>Rodrigues v. Campbell Industries</i> (1978) 87 Cal.App.3d 494, 501 [a cause of action is duplicative where it "adds nothing to the complaint by way of fact or theory of recovery"].) ***Case Management Conference is continued to June 22, 2026 at 9 AM. Defendants shall give notice of all the above.
--	--